



File No.: EXP202207320 (RR/00097/2024)

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by WILLOUGHBY COLLEGE, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated January 24, 2024, and based on the following

FACTS

FIRST: On January 24, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202207320, by virtue of which WILLOUGHBY COLLEGE, S.A. was imposed a fine of €5,500 (five thousand five hundred euros) for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, and a fine of €500 (five hundred euros) for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR.

This resolution, which was notified to the appellant on February 2, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00057/2023, the following was recorded:

FIRST: On November 6, 2020, an email was sent from the email address info@wic.edu.es to 48 recipients, including the email address of the complainant, ***USUARIO.1@hotmail.com, with the subject "Visit to the school farm." The email addresses of the recipients were visible.

On the same day, in response to the email referred to in the previous paragraph, the complainant, from the address ***USUARIO.1@hotmail.com, sent an email to info@wic.edu.es, with a copy to ***USUARIO.2@wic.edu.es, with the following message:

"Dear Sirs,

I request that you explain to me why you have made my email address public and provided it to a group of people. It is a confidential personal data and is now in the hands of other people who have already written to me.

Not only have you had my (...) with the surnames inverted for years without checking what the Civil Registry said, but now we have a new violation of data protection regulations.

Sincerely,

A.A.A."

SECOND: On December 22, 2021, an email was sent from the address ***USUARIO.3@wic.edu.es to 31 recipients, including the email address of the complainant, with the subject "Merry Christmas!" The email addresses of the recipients were visible.

On December 23, 2021, in response to the email referred to in the previous paragraph, the complainant, from the address ***USUARIO.1@hotmail.com, sent an email to

***USUARIO.3@wic.edu.es, with a copy to ***USUARIO.2@wic.edu.es, with the following message:

"Dear B.B.B.,

Thank you very much for your email.

However, as I have already indicated to the school on previous occasions, you cannot send emails without using BCC, as you are once again sharing the personal addresses of parents without their consent. Certainly, you do not have mine. I hope this situation does not happen again, although seeing the recurrence of the behavior, I fear we will continue like this indefinitely.

Best regards."

THIRD: On May 17, 2022, an email was sent from the address ***USUARIO.3@wic.edu.es to more than 100 recipients, including the email address of the complainant, ***USUARIO.1@hotmail.com, with the subject "Summer Show." The email addresses of the recipients were visible.

THIRD: The appellant submitted on February 9, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally arguing that they had already paid a fine of €900, the adoption of a series of measures, and that the complainant requests the filing of the procedure.

LEGAL GROUNDS

I

Competence

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a recourse for reconsideration. However, subsection 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the recourse by the appellant shall not be an obstacle to its processing, provided that its true nature is deduced, so the submitted document will be processed as a recourse for reconsideration.

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The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGGD).

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Grounds III and VII of the contested Resolution, as transcribed below:

1.- Payment of the sanction.

Regarding this allegation, it should be noted that the payment made by WILLOUGHBY COLLEGE on March 24, 2023, corresponds to the sanction imposed in EXP202302302 (PS/00083/2023), due to the commission of the infringement provided for in Article 83.5.e) of the GDPR, “failure to provide access in violation of Article 58, paragraph 1.”

Article 58.1 of the GDPR grants each supervisory authority the following investigative powers: “a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of their tasks; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued pursuant to Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the performance of their tasks; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

According to the resolution of PS/00083/2023, WILLOUGHBY COLLEGE did not respond to the two requests for information made by this Agency: “...In the context of the investigation proceedings, two requests for information were sent to the respondent party, relating to the complaint mentioned in the first section, requiring that, within ten working days and five working days respectively, they submit to this Agency the information and documentation indicated therein. The first of these was registered for dispatch on September 21, 2022, while the second was registered on December 9, 2022.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the respondent party on September 30, 2022, and December 9, 2022.

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December 2022, as stated in the Notification@ certificates in the file.

FOURTH: Regarding the requested information, the respondent party has not sent any response to this Spanish Agency for Data Protection.”

In case PS/00083/2023, an initial administrative fine of €1,500 was set, an amount that, after applying the reduction for voluntary payment of the sanction, which is cumulative with the one corresponding to the acknowledgment of responsibility, was reduced to €900. This amount was paid by WILLOUGHBY COLLEGE, as justified in its allegations.

Regardless of the initiation of procedure PS/00083/2023, this Agency deemed it appropriate to initiate a sanctioning procedure due to the facts included in the complaint filed by the complainant party, in which WILLOUGHBY COLLEGE is the alleged responsible party for the commission of two infringements, one of Article 5.1.f) of the GDPR, and another of Article 32 of the GDPR, for which, on June 27, 2023, the Director of this Agency issued a resolution to initiate sanctioning procedure PS/00057/2023.

Consequently, the payment of the sanction referred to by WILLOUGHBY COLLEGE in its allegation, as a cause for the termination of the sanctioning procedure provided for in Article 85 of the LPACAP due to voluntary payment by the alleged responsible party, is applicable to PS/00083/2023, not to the present sanctioning procedure (PS/00057/2023).

For all the above reasons, this allegation is dismissed.

2- Measures adopted after receiving the complaint and request for information

WILLOUGHBY COLLEGE claims that, since June 2022, it has adopted measures to prevent leaks of personal data such as the one that occurred in this case.

In response to this allegation, it should be noted that such measures, detailed in the document dated July 18, 2022, attached to the allegations, were not implemented until this Agency forwarded the complaint to WILLOUGHBY COLLEGE, so they do not have a spontaneous nature, nor do they respond to the communication made by the complainant party prior to the filing of the complaint.

3.- The complainant party requests the filing of the files initiated against WILLOUGHBY COLLEGE. The request made by the complainant party cannot be taken into consideration. Once the corresponding sanctioning administrative procedure has been processed and a final administrative resolution has been issued, in accordance with the provisions of the LOPDGDD and other applicable regulations, an administrative resolution through which the Director of this Agency has exercised the powers attributed to her by Article 58.2 of the GDPR, there is no basis for the revocation of said resolution at the request of the complainant.

For all the above reasons, this allegation is dismissed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the appeal for reconsideration filed.

Considering the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by WILLOUGHBY COLLEGE, S.A. against the resolution of this Spanish Agency for Data Protection issued on January 24, 2024, in file EXP202207320.

SECOND: TO NOTIFY this resolution to WILLOUGHBY COLLEGE, S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17 of

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December, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to collection in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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